

UNIVERSITY OF PORT HARCOURT

FACULTY OF LAW

NIGERIAN LEGAL SYSTEM

TOPIC: THE LEGAL PROFESSION, LEGAL AID AND ADVICE

In the legal profession, we have the bar and the bench. The bench refers to the entire judiciary. We have **two categories** of the bench which are the lower bench and the higher bench.

The lower bench is made up of the Magistrates and Judges of District Courts, Customary and Area Courts who are trained lawyers. Thus, the higher bench is made up of Judges of Superior Courts of records – High Court Judges, Judges of Sharia and Customary Court of Appeal and the Supreme Court.

What then is judiciary? It is a branch of government responsible for interpreting the laws and administering justice. See **Section 6 of the 1999 Constitution (as amended)**.

Thus, the judiciary consists of the bar and the bench. The bar also represents all lawyers who have been admitted or called to the bar whether they are practicing or not. It also includes Law Officers employed by the government, Private Legal Practitioners, Law lecturers and Lawyers working in statutory bodies.

However, in England, they have the barristers and solicitors. The barrister is involved mainly in advocacy in the court of law. The solicitor is a legal adviser to the citizens. He does non-litigious works like writing of wills, letters, conveyance, etc. For litigious matters the solicitor instructs the barrister and does all the necessary works before the commencement of an action in court. The barrister in turn interviews clients in the presence of the solicitor. He also talks to the instructing solicitor for his legal fees and not the clients.

Note, that in Nigeria the two branches are fused on enrolment, every lawyer practice as a barrister and as a solicitor.

RIGHT TO PRACTICE

By virtue of **Section 24 Legal Practitioners Act**, a legal practitioner is a person entitled in accordance with the provisions of the Act to practice as a barrister and solicitor.

By **Section 21 LPA**, it is only those whose name is on the roll of Legal practitioners kept by the Chief Registrar of the Supreme Court that can practice. In order to be entitled to be called to the bar, a person shall produce to the body of benchers a qualifying certificate and satisfy the Benchers that he is of good character. The qualifying certificate includes a law degree from a recognized university and completion of the practical training course at the Nigerian Law School.

THOSE ENTITLED TO PRACTICE FOR THE PURPOSE OF ANY PROCEEDINGS (BY WARRANT)

By **Section 2(2) of the LPA**, the Chief Justice of Nigeria, if he deems it necessary, may permit a foreign lawyer to practice as a barrister for the purposes of any proceedings in which the application is made. The foreign lawyer must satisfy the Chief Justice of Federation that he is a member of the legal profession in the country where the legal system is similar to that of Nigeria. The foreign lawyer must satisfy the immigration law of Nigeria before he could be allowed to enter Nigeria. See **AWOLOVO V FEDERAL MINISTER OF INTERNAL AFFAIRS** (1962) LLR 117, 1966 NSCC 208.

THOSE ENTITLED TO PRACTICE FOR THE PURPOSE OF ANY OFFICE

Pursuant to **Section 2(3) LPA** any person who exercise the functions of the office of the Attorney General or Director of public prosecution of the Federation or of a state is entitled to practice as a barrister and solicitor for the purpose of the office.

PRACTICING FEE

A legal practitioner must pay his annual practicing fee in order to have his name on the roll and to sustain his right to practice. **Rule 9(1) of the Rules of Professional Conduct for Legal Practitioners** provides that a lawyer shall pay his annual practicing fees not later than 31st March every year.

DUTIES OF A LAWYER

1 **Practice as a Legal Practitioner:** A lawyer shall uphold and observe the rule of law, promote and foster the cause of justice and maintain a high standard of professional conduct which is unbecoming of a legal practitioner. **Rule 24 RPC.**

2 **Duty to the court:** As minister in the temple of justice, a lawyer is saddled with the duty to protect and foster the course of justice, and a duty to show respect when appearing before a judicial tribunal with courtesy and dignity. In **GLOBAL TRANSPORT OCEANICO S.A & ANOR V. FREE ENTERPRISES NIG. LTD.** (2000) 2 SCNQR 752 at 782-783, where the third person pronoun 'she' was used in addressing a female judge. The Supreme Court maintained that it was unethical holding that counsel should have referred to the judge as the 'learned trial judge'. Also, in **RONDEL V WORSLEY** (1966) 3 ALL E.R. 657, **Lord Denning** said a lawyer has a duty to the court, which is paramount. In **CHIME V CHIME**, **Wali J.S.C** observed that it is counsel that should wait for the court and not the other way round.

3 **Duty as a Prosecuting Counsel:** A prosecuting counsel for the state must present the case against the accused with utmost impartiality and fairness.

4 **Duty as a Defence Counsel:** The cab rank rule is that a lawyer shall undertake the defence of person accused of crime, regardless of his personal opinion as to the guilt of the accused; this is because innocent persons, victims only of suspicious circumstances, might be denied proper defence. By **Rule 16(a) of RPC**, a lawyer should not handle a legal matter which he knows that he is not competent to handle, without associating with a lawyer who is competent

to handle it, unless the client objects. A confidential disclosure of guilt alone does not require a withdrawal from the case. By **Rule 9(b)** he should never offer testimony, which is false to his knowledge.

5. **Duty to the Client:** He has a duty to accept brief where he practices subject to professional fees. This is the position of law in **Rule 23 RPC** even though the case at hand is unpopular. But where there may be conflicting interest or on religious grounds, he may be justified by not accepting the brief. By **Rule 32 RPC**, a lawyer must take instructions in chambers and not in his client's house or office except on grounds of illness of client, old age, infirmity, or other reasonable grounds. By the provision of **Rule 12 RPC**, he must take full instruction and ascertain all facts before advising on them. Again, in **Rule 18 RPC**, a lawyer has a duty to follow his client's instruction. In **AFEGBAI V A.G EDO STATE & ANOR (2001) 7 NSCQR 549** at 571-572, the Supreme Court held that the nature of the legal relationship between counsel and his client is one of an independent contractor and not one of principal and agent. It is not that of master and servant. By the provision of **Rule 29**, a counsel has a duty to appear in litigation on behalf of his client until the case is concluded. **Thus, he can only withdraw from his employment once assumed on good cause and after notice has been given to his client.**

6 **Duty to the General Public and the State:** **The International Commission of jurists (I.C.J) in 1962 at Rio De Janeiro** recognized that the responsibilities of the lawyer are not only confined to matters affecting his clients. He is now seen as a social engineer whose skill should be held in trust for the community. As such, lawyers should be active in law reforms, propose legislations and present to the appropriate authorities.

7. **Duty to Fellow Advocate:** By the Provision of **Rules 26(1) and Rule 27(1)**, a lawyer shall treat one another with respect, fairness, consideration and dignity, and shall not allow ill-feeling between opposing clients to influence their conduct and demeanor towards one another. A lawyer has a duty not to covet clients. Any direct or indirect effort in encroaching upon the professional employment of another lawyer is unworthy.

LIABILITY OF LAWYERS FOR PROFESSIONAL NEGLIGENCE

Under the common law, solicitors like other professionals are usually liable for negligence in the performance of their duties. In **COCOTTONPOULOUS v. P.Z.CO.LTD. (1965) LLR 170**, the court held that a solicitor is under a duty to show reasonable diligence and caution and should warn his client against the initiation of a case that is purely speculative and devoid of merit.

Also, in **BELLO RAJI v. X (A LEGAL PRACTITIONER)**, the plaintiff instructed X to bring an action against the Lagos Town Council. Counsel told Plaintiff that he has a good cause of action even when the action was statute barred by virtue of the public officer's protection ordinance. When the matter was called up, counsel was absent in court, thus the case was stuck

out. It was held that counsel was liable for gross negligence for misadvising his client to bring an action that was statute barred.

In **FITZ PATRICK v. BATGET & CO. LTD** (1967) Ch 384, the plaintiff suffered an injury while working for the defendant company. The action was dismissed for want of diligent prosecution. In an action brought against the plaintiff's solicitor, the court held that the plaintiff's solicitor was liable for negligence for inordinate delay in the prosecution of the case.

By **Section 9(1) of the Legal Practitioners Act 2004**, subject to the provisions of this section, a person shall not be immune from liability for damage attributable to his negligence while acting in his capacity as a legal practitioner, and any provision purporting to exclude or limit that liability in any contract shall be void. This provision merely preserves the common law position on the liability of lawyers for negligence.

DISCIPLINE

Discipline is simply correcting a negative behavior. For every misconduct in the legal profession, a legal disciplinary action will be meted against such a person. Instances where disciplinary action will be carried out includes:

- (1) Infamous conduct,
- (2) Conviction by a court with criminal jurisdiction in Nigeria for an offence which is incompatible with the status of a legal practitioner,
- (3) Fraudulent enrolment of a lawyer.

Any breach of the rules of professional conducts will amount to infamous conduct in a professional respect.

Note that by **Section 13(1) L.P.A.**, the sanction for professional misconduct are admonition, suspension and striking out the name of a person from the roll of legal practitioners. Usually, admonition is for less serious offenses.

By the provision of **Section 13 (2) Legal Practitioners Act 2004**, suspension can be imposed where the misconduct is serious but not enough for striking out of the person's name from the roll. Suspension may be imposed with a view to instituting disciplinary proceedings or while such proceeding is pending.

Moreover, striking out a person's name from the roll of legal practitioners is one of the most severe punishment for offenses of the highest gravity. Offenses involving financial dishonesty have always been regarded as incompatible with the status of a legal practitioner.

In **NIGERIA BAR ASSOCIATION (NBA) v. OLUWASESAN EDU** (2006) 14 NWLR (Pt 1000) 827, the respondent had collected the sum of ₦2,520,000 in favour of his client but failed to pay the money over to his client. When the matter was reported to the police, he issued a

cheque for the amount which turned out to be dud. The legal practitioner's disciplinary committee found him guilty of misconduct in a professional respect and ordered that his name be struck off the roll of legal practitioners in Nigeria.

The rule of natural justice **audi alteram partem** and **nemo judex in causa sua** must be observed by the Legal Practitioners Disciplinary Committee.

In **LPDC v. FAWEHINMI (1985) 2 NWLR (Pt. 7) 300**, it was held that in the exercise of its disciplinary authority over erring legal practitioners, the legal practitioners disciplinary committee must observe the rules of natural justice.

QUERY

Can a legal practitioner whose name has been struck out from the roll be reinstated? In re-admitting a legal practitioner whose name has been struck out from the roll, the following conditions are considered;

1. The gravity of the offence which necessitated the striking off the name.
2. Sufficient evidence of genuine remorse shown by the applicant between the period of striking off of his name and the submission of his application for reinstatement.
3. Whether the court is satisfied that the applicant has in the intervening years become a fit and proper person to be re-incorporated as a member of the legal profession.

In **Re ABIAH (1963) 1 ALL NLR 278**, the appellant a legal practitioner was convicted of forgery. In May 1951, his appeal to the Supreme Court was dismissed and on 30th April 1963, the court ordered that his name be struck off the roll. He applied for reinstatement in 1965, but it was refused. He applied again in 1970 and it was refused. After obtaining a free pardon by the Administrator of the East Central State in 1973, he applied again to the Supreme Court for restoration of his name on the roll. In granting the application, the Court took account of the facts that the applicant has shown sufficient remorse and that almost 12 years has elapsed during which he was reduced to a state of penury.

LEGAL EDUCATION

Before **1962**, there was no local institution for the training of lawyers in Nigeria. Training of legal practitioner was done in the United Kingdom. The cost of such training kept away many qualified persons. Also, products of such training had not the opportunity to learn aspects of Nigeria like Customary Law and Nigerian Legislations. Also, in the United Kingdom, you practice as a Barrister or Solicitors but in Nigeria both are fused.

In April **1959**, against this background the Federal Government set up the **Unsworth Committee** to make recommendations on the future of legal profession in Nigeria. It thus recommended that:

1. Legal education should be provided locally which should meet the requirements of Nigeria,
2. Establishment of law faculties in Nigeria Universities,
3. A law school to provide practical training for law graduates should be established in Lagos,
4. Mandatory university requirement for those aspiring to join the Legal profession,
5. A council of legal education should be established.

The Federal Government accepted some of the recommendations and gave effect to it. This led to the enactment of the **Legal Practitioners Act** designed to regulate the Legal Profession. The **Legal Education Act** established the Council of Legal Education with the responsibility for legal education of persons seeking to become members of the profession. Pursuant to the **Legal Education Act of 1962**, the **Nigerian Law School** was established in Lagos in 1962 for providing a professional training for lawyers. In 1977, the Abuja campus was established in Bwari Abuja. Other campuses are at Kano, Enugu which took off in 2001. Additional campuses were also established in Yola and Yenegoa, and recently in Port Harcourt.

LEGAL AID AND ADVICE

By **Section 17 of the 1999 Constitution of the Federal Republic of Nigeria (as amended)** every citizen shall have equality of rights, obligations and opportunity before the law. But the high level of poverty and the inequality in Nigeria negates this provision.

Thus, in respect of enforcement of fundamental rights the Constitution makes express provision for legal aid. In **Section 46(4) of the 1999 Constitution (as amended)** it provides that the National Assembly shall make provisions for the rendering of financial assistance to any indigent citizens of Nigeria where his right under this chapter has been infringed or with a view to enabling him to engage the services of a legal practitioner to prosecute his claim.

The legal aid council is the managing body of the legal aid scheme established under the **legal aid Decree No. 56 of 1976 (as amended by Decree No. 22 of 1994)**. This scheme is aimed at helping the poor under certain economic bracket to have access to justice either by providing them with legal advice or representation in court.

Any person charged with a capital offence who cannot procure the services of a lawyer should be assigned one by the court. Such a lawyer must be of sufficient experience to enable him defend the accused effectively. The legal aid council has offices in all the 36 states of the Federation. There is also one legal office in every state office of the council.

Private legal practitioners also register with the council and render legal service to the council for a token fee. The council also make use of lawyers serving in the Mandatory National Youth Service Corps for their services.